

From : info@ethichawks.co.za
To : <fismail@judiciary.org.za>
Subject : Allocation of Set-Down Date | Case No: 2026-077546 | W.W. Matthee vs. Afrocentric Health (RF) (PTY) LTD & Another
Date : 08 May 2026 12:29

Dear Ms Ismail,

RE: APPLICATION FOR DEFAULT JUDGMENT – WILBUR WILLIAM MATTHEE // AFROCENTRIC HEALTH (RF) (PTY) LTD & ANOTHER (CASE NO: 2026-077546)

The above-captioned matter refers, in which the Applicant has filed an application for Default Judgment in terms of Rule 16 of the Labour Court Rules.

Please be advised of the following timeline regarding the ripeness of this matter:
Service Effected: 14 April 2026 (Deemed service per Rule 7).

Expiry of Opposition Period: 29 April 2026 (10 business days, accounting for the public holiday on 27 April).

Application Filed: 30 April 2026.

As of the date of this email, the Respondents have failed to file a Notice of Intention to Oppose or any answering papers. The matter is, therefore, unopposed and ripe for hearing.

This is a straightforward claim under Section 77A of the BCEA for the repayment of an unlawfully recovered amount of R14,811.77.

Given the liquidated nature of the claim and the clear contravention of Section 34 of the BCEA, the Applicant has requested a duration of approximately 10 minutes, or that the matter be considered for a final order in Chambers.

Could you kindly confirm if the matter has been allocated a date on the Unopposed Roll or if it has been referred to a Judge for consideration?

For your convenience, I have attached the following documents to this email:

Notice of Application for Default Judgment.

Applicant's Practice Note.

Affidavit of Service (confirming service to the Respondent's authorized email address).

I thank you for your assistance in this regard.

Yours Professionally,

Wilbur William Matthee
Applicant (Self-Represented)
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